SJPD Flock ALPR misuse matter (disclosed Sept. 11, 2026): investigation, audit-trail, and access-suspension records

MuckRock request #223481 · San Jose Police Department · Agency tracking # P010209-100826

Status: Processing · Submitted: 2026-10-09 · Due: 2026-10-19

Source: https://www.muckrock.com/foi/san-jose-336/sjpd-flock-alpr-misuse-matter-disclosed-sept-11-2026-investigation-audit-trail-and-access-suspension-records-223481/

Captured 2026-11-06T00:14:36Z from MuckRock's api_v2 (raw response sha256 3444cf93b72df800108957791932c8bac18ca5fdbc011817938c35b14af466fd). Communication text is extracted verbatim. Redacted: requester surname (first sender's full name reduced to first name); MuckRock upload links; MuckRock request routing addresses.

From: Brian — 2026-10-09T00:13:02.935251-04:00

Subject: California Public Records Act Request: SJPD Flock ALPR misuse matter (disclosed Sept. 11, 2026): investigation, audit-trail, and access-suspension records

To Whom It May Concern:

Pursuant to the California Public Records Act, I hereby request the following records:

On September 11, 2026, Chief Paul Joseph disclosed that the Department terminated an officer who, while off duty, used a personal device to conduct unauthorized searches of the Department's Flock Safety automated license plate reader (ALPR) system in connection with a domestic violence matter involving family members. As reported, the Department has said that the improper access was discovered in February 2025, that the officer was placed on administrative leave and later terminated, that the matter was referred to the Commission on Peace Officer Standards and Training, that a criminal case was submitted to the District Attorney's office and no criminal charges were filed, and that audit logs tracking access from the personal device provided the evidence. Below, "the Flock misuse matter" refers to that matter.

Records requested:

1. Records of the Department's investigation of the Flock misuse matter and of the discipline imposed, to the extent they are records described in Penal Code § 832.7(b)(1), including any record relating to a sustained finding described in subparagraph (C) or (E) of that paragraph, and including the categories of records listed in Penal Code § 832.7(b)(3).

2. The ALPR access records the Department identified or relied on in the Flock misuse matter as reflecting the unauthorized searches: the corresponding entries of the Department's Flock organization audit, in native export form with every field the export carries (including date and time, search type, networks searched, time frame, reason, and case number), and any Flock record of the device, application, or access method used for those searches (for example, mobile application or web browser). License plate numbers and other civilian identifying information may be redacted. Civil Code § 1798.90.52 provides that an ALPR operator that accesses ALPR information "shall do both of the following: (a) Maintain a record of that access. At a minimum, the record shall include all of the following: (1) The date and time the information is accessed. (2) The license plate number or other data elements used to query the ALPR system. (3) The username of the person who accesses the information . . . . (4) The purpose for accessing the information." Duty Manual section L 4207 (2024) provides that "[a]udit trails shall be maintained by the Department for a minimum of two (2) years." A response of "no responsive records" to this item would mean that the Department no longer has the access records that, as reported, provided the evidence in the matter.

3. Records reflecting the suspension or disabling of the officer's access to the Flock ALPR system in the Flock misuse matter, including any request or authorization to disable the account and the Flock user-management record of the change.

If any record or portion of a record is withheld, please identify the exemption asserted for it and release any reasonably segregable portion. Please produce records for each item as they become available. I request electronic copies, with any audit-log export in its native spreadsheet or CSV format.

The requested documents will be made available to the general public, and this request is not being made for commercial purposes.

In the event that there are fees, I would be grateful if you would inform me of the total charges in advance of fulfilling my request. I would prefer the request filled electronically, by e-mail attachment if available or CD-ROM if not.

Thank you in advance for your anticipated cooperation in this matter. I look forward to receiving your response to this request within 10 calendar days, as the statute requires.

Sincerely,

Brian

From: San Jose Police Department — 2026-10-09T00:56:35.072259-04:00

Subject: Public Records Request - San Jose Police Department :: P010209-100826

Dear Brian:

Thank you for your interest in public records of the San Jose Police Department. Your request was received on 10/8/2026 and is being processed. The reference number for tracking purposes is P010209-100826 .

Records Requested:
To Whom It May Concern:
Pursuant to the California Public Records Act, I hereby request the following records:
On September 11, 2026, Chief Paul Joseph disclosed that the Department terminated an officer who, while off duty, used a personal device to conduct unauthorized searches of the Department's Flock Safety automated license plate reader (ALPR) system in connection with a domestic violence matter involving family members. As reported, the Department has said that the improper access was discovered in February 2025, that the officer was placed on administrative leave and later terminated, that the matter was referred to the Commission on Peace Officer Standards and Training, that a criminal case was submitted to the District Attorney's office and no criminal charges were filed, and that audit logs tracking access from the personal device provided the evidence. Below, "the Flock misuse matter" refers to that matter.
Records requested:
1. Records of the Department's investigation of the Flock misuse matter and of the discipline imposed, to the extent they are records described in Penal Code § 832.7(b)(1), including any record relating to a sustained finding described in subparagraph (C) or (E) of that paragraph, and including the categories of records listed in Penal Code § 832.7(b)(3).
2. The ALPR access records the Department identified or relied on in the Flock misuse matter as reflecting the unauthorized searches: the corresponding entries of the Department's Flock organization audit, in native export form with every field the export carries (including date and time, search type, networks searched, time frame, reason, and case number), and any Flock record of the device, application, or access method used for those searches (for example, mobile application or web browser). License plate numbers and other civilian identifying information may be redacted. Civil Code § 1798.90.52 provides that an ALPR operator that accesses ALPR information "shall do both of the following: (a) Maintain a record of that access. At a minimum, the record shall include all of the following: (1) The date and time the information is accessed. (2) The license plate number or other data elements used to query the ALPR system. (3) The username of the person who accesses the information . . . . (4) The purpose for accessing the information." Duty Manual section L 4207 (2024) provides that "[a]udit trails shall be maintained by the Department for a minimum of two (2) years." A response of "no responsive records" to this item would mean that the Department no longer has the access records that, as reported, provided the evidence in the matter.

3. Records reflecting the suspension or disabling of the officer's access to the Flock ALPR system in the Flock misuse matter, including any request or authorization to disable the account and the Flock user-management record of the change.
If any record or portion of a record is withheld, please identify the exemption asserted for it and release any reasonably segregable portion. Please produce records for each item as they become available. I request electronic copies, with any audit-log export in its native spreadsheet or CSV format.
The requested documents will be made available to the general public, and this request is not being made for commercial purposes.
In the event that there are fees, I would be grateful if you would inform me of the total charges in advance of fulfilling my request. I would prefer the request filled electronically, by e-mail attachment if available or CD-ROM if not.
Thank you in advance for your anticipated cooperation in this matter. I look forward to receiving your response to this request within 10 calendar days, as the statute requires.
Sincerely,
Brian
Upload documents directly: [MuckRock upload link removed]

You can monitor the progress of your request at the link below. An email will be provided when your request has been completed. Again, thank you for using the Public Records Center.

City of San Jose

To track your request and respond, visit the

then click on "My Records Center."

From: San Jose Police Department — 2026-10-27T14:22:06.341375-04:00

Subject: [Records Center] Public Records Request - San Jose Police Department :: P010209-100826

--- Please respond above this line ---

RE: Public Records Request - San Jose Police Department of October 08, 2026., Reference # P010209-100826.
Dear Brian,
The City of San Jose received a public information request from you on October 08, 2026. Your request stated: "To Whom It May Concern:

Pursuant to the California Public Records Act, I hereby request the following records:

On September 11, 2026, Chief Paul Joseph disclosed that the Department terminated an officer who, while off duty, used a personal device to conduct unauthorized searches of the Department's Flock Safety automated license plate reader (ALPR) system in connection with a domestic violence matter involving family members. As reported, the Department has said that the improper access was discovered in February 2025, that the officer was placed on administrative leave and later terminated, that the matter was referred to the Commission on Peace Officer Standards and Training, that a criminal case was submitted to the District Attorney's office and no criminal charges were filed, and that audit logs tracking access from the personal device provided the evidence. Below, "the Flock misuse matter" refers to that matter.

Records requested:

1. Records of the Department's investigation of the Flock misuse matter and of the discipline imposed, to the extent they are records described in Penal Code § 832.7(b)(1), including any record relating to a sustained finding described in subparagraph (C) or (E) of that paragraph, and including the categories of records listed in Penal Code § 832.7(b)(3).

2. The ALPR access records the Department identified or relied on in the Flock misuse matter as reflecting the unauthorized searches: the corresponding entries of the Department's Flock organization audit, in native export form with every field the export carries (including date and time, search type, networks searched, time frame, reason, and

case number), and any Flock record of the device, application, or access method used for those searches (for example, mobile application or web browser). License plate numbers and other civilian identifying information may be redacted. Civil Code § 1798.90.52 provides that an ALPR operator that accesses ALPR information "shall do both of the following: (a) Maintain a record of that access. At a minimum, the record shall include all of the following: (1) The date and time the information is accessed. (2) The license plate number or other data elements used to query the ALPR system. (3) The username of the person who accesses the information . . . . (4) The purpose for accessing the information." Duty Manual section L 4207 (2024) provides that "[a]udit trails shall be maintained by the Department for a minimum of two (2) years." A response of "no responsive records" to this item would mean that the Department no longer has the access records that, as reported, provided the evidence in the matter.

3. Records reflecting the suspension or disabling of the officer's access to the Flock ALPR system in the Flock misuse matter, including any request or authorization to disable the account and the Flock user-management record of the change.

If any record or portion of a record is withheld, please identify the exemption asserted for it and release any reasonably segregable portion. Please produce records for each item as they become available. I request electronic copies, with any audit-log export in its native spreadsheet or CSV format.

The requested documents will be made available to the general public, and this request is not being made for commercial purposes.

In the event that there are fees, I would be grateful if you would inform me of the total charges in advance of fulfilling my request. I would prefer the request filled electronically, by e-mail attachment if available or CD-ROM if not.

Thank you in advance for your anticipated cooperation in this matter. I look forward to receiving your response to this request within 10 calendar days, as the statute requires.

Sincerely,

Brian

Upload documents directly: [MuckRock upload link removed]
I am awaiting responses from other units. Additional time is required for your request.
Sincerely,
Astrid Escobedo
Analyst II
Police - Research and Development Unit

From: Brian — 2026-11-05T18:43:01.107553-05:00

Subject: RE: California Public Records Act Request #P010209-100826

Dear Astrid Escobedo,

Thank you for the October 27 notice on request P010209-100826. I am writing to set out the timeline and to ask for the determination.

The City received this request on October 8, 2026, as its acknowledgment states. Government Code § 7922.535(a) provides that an agency shall, "within 10 days from receipt of the request, determine whether the request, in whole or in part, seeks copies of disclosable public records in the possession of the agency and shall promptly notify the person making the request of the determination and the reasons therefor," and that if the agency determines the request seeks disclosable public records, it "shall also state the estimated date and time when the records will be made available." The tenth day fell on Sunday, October 18, so the determination was due no later than Monday, October 19. I did not receive one.

Section 7922.535(b) allows that time limit to be extended in unusual circumstances "by written notice from the head of the agency or a designee to the person making the request, setting forth the reasons for the extension and the date on which a determination is

expected to be dispatched," and provides that "[t]he notice shall not specify a date that would result in an extension for more than 14 days." The October 27 notice arrived eight days after the determination was due. It gives a reason ("awaiting responses from other units") but no date on which a determination is expected. Even an extension given on time could not have run past November 2. As of today, November 5, I have received neither a determination nor an estimated date.

Section 7922.500 provides that "[n]othing in this division shall be construed to permit an agency to delay or obstruct the inspection or copying of public records." For the Item 1 records, Penal Code § 832.7(b)(11) separately provides that, except where paragraph (8) of that subdivision permits temporary withholding for a longer period, records subject to disclosure under that subdivision "shall be provided at the earliest possible time and no later than 45 days from the date of a request for their disclosure." For this request, that is November 22, 2026.

Please send the determination for each of Items 1, 2 and 3, with the reasons for it. For each item the Department determines seeks disclosable records, please state the estimated date and time when those records will be made available.

The request also asked that records be produced for each item as they become available. Items 2 and 3 are discrete records: the audit-log entries that, as reported, provided the evidence in the matter, and the record of the officer's Flock access being disabled. Please produce them when they are ready rather than holding them for Item 1.

If any record or portion of a record is withheld, please identify it and the exemption asserted, and set forth the names and titles or positions of each person responsible for the denial (§ 7922.540(b)).

If I have not received the determination by Friday, November 13, 2026, I will understand that the Department has declined to provide one.

Thank you.